IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-101

CA (CAA) No. - 25/230/232/ND/2023

IN THE MATTER OF:

Murlidhar Sales Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 24.08.2023**

CORAM:

SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

Order pronounced in open Court vide separate sheets. CA (CAA) No. - 25/230/232/ND/2023 is **allowed.**

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

Sd/-
(MAHENDRA KHANDELWAL)
MEMBER (J)

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. V, NEW DELHI

CA (CAA) -25/ (ND)/2023

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

In the matter of Scheme of Amalgamation and Merger

OF

ILAND DEALERS PRIVATE LIMITED
(Applicant Company-1 /Transferor Company)

AND

WINDFLOWER VINCOM PRIVATE LIMITED
(Applicant Company-2/Transferor Company)

WITH

MURLIDHAR SALES PRIVATE LIMITED
(Applicant Company-3/Transferee Company)

Order Delivered on:24.08.2023

CORAM:

SHRI MAHENDRA KHANDELWAL, HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

APPEARANCE:

For the Applicant : Mr. Raghav Agarwal, CS

For the Respondent:

MEMO OF PARTIES

Iland Dealers Private Limited

Registered Office at: D-21, Acharya Niektan, Mayur Vihar, Phase- 1, Delhi - 110091

...Transferor Company/Applicant Company-1

AND

Windflower Vincom Private Limited

Registered office at: D-21, Acharya Niektan, Mayur Vihar, Phase- 1, Delhi - 110091

...Transferor Company/Applicant Company-2

WITH

Murlidhar Sales Private Limited

Registered office at: D-21, Acharya Niektan, Mayur Vihar, Phase- 1, Delhi - 110091

...Transferee Company/Applicant Company-3

O R D E R

PER: SHRI MAHENDRA KHANDELWAL, HON'BLE MEMBER (JUDICIAL)

1. This is a joint application filed by the applicant companies herein, **M/s Iland Dealers Private Limited** (Transferor Company/ Applicant Company-1), **M/s Windflower Vincom Private Limited** (Transferor Company/ Applicant Company-2) with **M/s Murlidhar Sales Private Limited** (Transferee Company/Applicant Company-3) under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement in the nature of amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. The Applicant Company No. 1/Transferor Company, M/s Iland Dealers Private Limited (CIN U51909DL2010PTC309498) was incorporated under the provisions of the Companies Act, 1956, as a private limited company vide Certificate of Incorporation dated 25.03.2010 having its registered office at D-21, Acharya Niketan, Mayur Vhar, Phase-1, Delhi - 110091. The Authorized Share Capital of the Applicant Company No. 1/Transferor Company is Rs. 2,00,000/- divided into 20,000 Equity Shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each fully paid up. The Applicant Company No.1/Transferor Company, vide their meeting of the Board of Directors held on 01.03.2023 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record. Affidavit in support of the above application sworn by Mr. Vipin Kumar Agarwal being the authorized signatory of the Applicant Company 1, who has been authorized vide Board Resolution dated 01.03.2023 for the Transferor Company No. 1, was duly filed, along with the application. It was also represented that the registered office of the Applicant Company 1 is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and therefore within the territorial jurisdiction of this Tribunal.

3. The Applicant Company No. 2/Transferor Company M/s Windflower Vincom Private Limited is a private limited company incorporated under the provisions of Companies Act, 1956, vide Certificate of Incorporation dated 25.03.2010 (CIN- U51909DL2010PTC309211) with Registrar of Companies, NCT of Delhi & Haryana and having its registered office at D-21, Acharya Niketan, Mayur Vihar Phase- 1, Delhi- 110091. The Authorized Share Capital of the Applicant Company No. 2/Transferor Company is Rs. 2,00,000/- divided into 20,000 Equity shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each fully paid up. The Applicant Company No. 2/Transferor Company, vide their meeting of the Board of Directors held on 01.03.2023 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record. Affidavit in support of the above application sworn by Mr. Vipin Kumar Agarwal being the authorized signatory of the Applicant Company 2, who has been authorized vide Board Resolution dated 01.03.2023 for the Transferor Company No. 2, was duly filed, along with the application. It was also represented that the registered office of the Applicant Company 2 is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and therefore within the territorial jurisdiction of this Tribunal.

4. The Applicant Company No. 3/Transferee Company Murlidhar Sales Private Limited is a private limited company incorporated under the provisions of Companies Act, 1956, vide Certificate of Incorporation dated 27.01.2007 (CIN- U51109DL2007PTC308399) with Registrar of Companies, NCT of Delhi & Haryana and having its registered office at D-21, Acharya Niketan, Mayur Vihar, Phase-1, Delhi- 110091. The Authorized Share Capital of the Applicant Company No. 3/Transferee Company is Rs. 56,50,000/- divided into 5,65,000

Equity shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 56,12,400/- divided into 5,61,240 Equity Shares of Rs.10/- each fully paid up. The Applicant Company No. 3/Transferee Company, vide their meeting of the Board of Directors held on 01.03.2023 have unanimously approved the proposed Scheme of Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record. Affidavit in support of the above application sworn by Mr. Rajive Kumar being the authorized signatory of the Applicant Company 3, who has been authorized vide Board Resolutions dated 01.03.2023 for the Transferee Company, was duly filed, along with the application. It was also represented that the registered office of the Applicant Company 3 is under the domain of Registrar of Companies, NCT of New Delhi & Haryana and therefore within the territorial jurisdiction of this Tribunal.

5. The Transferor Companies as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the Financial Year 31.03.2022.

6. It has been stated that the Applicant Company-1/Transferor Company has 3 Shareholders. Certificate from Chartered Accountants certifying list of shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Company has nil Secured and 1 Unsecured Creditor. Since the Company has nil Secured Creditors, therefore, the necessity of convening/holding a meeting of Secured Creditors does not arise. In relation to the 1 Unsecured Creditor, it seeks dispensing with holding/convening of the meetings as their consent affidavits were placed on record.

7. It has been stated that the Applicant Company-2/Transferor Company has 3 Shareholders. Certificate from Chartered Accountants certifying list of

shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Company has nil Secured and 1 Unsecured Creditor. Since the Company has nil Secured Creditors, therefore, the necessity of convening/holding a meeting of Secured Creditors does not arise. In relation to the 1 Unsecured Creditor, it seeks dispensing with holding/convening of the meetings as their consent affidavits were placed on record.

8. It has been stated that the Applicant Company-3/Transferee Company has 3 Shareholders. Certificate from Chartered Accountants certifying list of shareholders has been annexed. All of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Company has nil Secured Creditor and nil Unsecured Creditor. Since the Company has nil Secured Creditor and Unsecured Creditor, therefore, the necessity of convening/holding a meeting does not arise

9. The appointed date as specified in the Scheme is 01.04.2022 subject to the directions of this Tribunal.

10. The Applicant Companies confirmed that the provisions relating to the accounting treatment for the proposed demerger, as contained in the Scheme, were in conformity with the applicable provisions of the Companies Act, 2013. Certificates from respective Statutory Auditors of the Companies on the accounting treatment, as proposed in the Scheme, were annexed to the application and it is clearly stated that the Accounting treatment is in conformity with the applicable prescribed under Section 133 of Companies Act, 2013.

11. The Applicant Companies in their affidavit have stated that no proceedings for inspection, inquiry or investigation were pending against any of the Applicant Companies.

12. Taking into consideration the submissions and the documents filed therewith, the following directions are issued with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows:

A. <u>In relation to the Applicant Company-1:</u>

a) With respect to Equity shareholders: In view of consent affidavits from 3 equity shareholders, having 100% voting share, been filed, convening the meeting of shareholders/members is dispensed with.

b) With respect to Secured Creditors: There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) With respect to Unsecured Creditors: In view of consent affidavits from 1 Unsecured Secured Creditor comprising 100% of the total amount of debt, convening the meeting of Unsecured Creditors is dispensed with.

B. <u>In relation to Applicant Company-2:</u>

a) With respect to Equity shareholders: In view of consent affidavits, from 3 equity shareholders, having 100% voting shares, been filed, convening the meeting of shareholders/members is dispensed with.

b) With respect to Secured Creditors: There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) With respect to Unsecured Creditors: In view of consent affidavits from 1 Unsecured Secured Creditor comprising 100% of the total amount of debt, convening the meeting of Unsecured Creditor is dispensed with.

C. <u>In relation to Applicant Company-3:</u>

a) **With respect to Equity shareholders:** In view of consent affidavits, from 3 equity shareholders, having 100% voting shares, been filed, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** There are nil Unsecured Creditor, therefore the necessity of convening a meeting does not arise.

19. Notice of this application shall be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

ii. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

iii. Official Liquidator, Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi- 110001;

iv. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

v. Any other sectoral regulators required to be served.

The application stands allowed on the aforesaid term and disposed off.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

Sd/-
(MAHENDRA KHANDELWAL)
MEMBER (JUDICIAL)